

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

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Present: Sh. Hari Kishan, Senior Prosecutor for SFIO along with
Sh. Lokender Singh Raghav, Standing Government Counsel for
the complainant -SFIO and Sh.Abhinav Deshwal, Legal
Consultants

Accused Nos. **1** to **70** companies represented through accused
No.114 Rahul Virendra Modi who is in custody

Accused Nos. **71** to **78** companies, represented through
accused Sidharth Chauhan (No. **135**)

Accused No.**79** company, represented through accused
Vivek Hari Vyasi (No. **115**) who is on interim bail.

Accused Nos. **80** company, represented through accused
Naveen Kumar (No. **139**).

Accused Nos. **81** and **82** companies, represented through
accused Surender Singh (No. 140) who is on interim bail
from Hon'ble Supreme Court

None for accused No.83 company

Accused Nos. **84** company, represented through accused
Abhya K. Shah(No.127), represented by Sh.Nitin Desodia,
Advocate

Accused Nos. **85** company, represented through accused
Jainam Rathod (No.130, who has sought exemption **today**)
on bail from Hon'ble Supreme Court

Accused Nos. **86**, **87** and **88** companies, represented
through accused Ravi Tak (No. **166**, who has sought
exemption **today**)

Accused No. **89** company, represented through accused
Raj Kumar Bohra (No. 171).

Accused Nos. **90** to **93** companies, represented through
accused Vivek Hari Vyasi (No.**115**) who is on interim bail

Accused Nos. **94** to **97** companies, represented through
Shri Rahul, AR, in person

Accused Nos. **98** company, represented through Shri
Naresh Kumar, AR, in person

Accused Nos. **99** and **100** companies, represented through
accused Raj Kumar Modi (No. **176**) who is on interim bail
from Hon'ble Supreme Court

Accused No.**101** Alba Ploymers Ltd. Represented through
Sh Abhishek AR.

Accused No. **102** company, represented through Shri
Deepak, AR, in person

Accused No. **103** company, represented through Shri
Dharmender, AR, in person

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Accused No. **104** company, represented through Shri Vicky,
AR , in person
Accused No. **105** company represented through Shri Anoop,
AR , in person
Accused No. **106** company represented through Shri Kashi
Nath Jha, AR , in person
Accused No. **107** company, represented through Sh Fateh
Singh AR,
Accused No. **108** company, represented through Shri Jishan,
AR,
Accused No. **109** company, represented through Shri Vikas
Paul, AR, in person
Accused Nos. **110** company, represented through Shri Raju
Yadav, AR in person
Accused No. **111** company, represented through Shri Ritik
Sharma, AR, in person
None for accused No. **112** company,

Accused Vivek Harivyasi (No. **115**) on interim bail,
represented by Sh Vivek Tanwar, Advocate

Accused No.117 Priyanka Modi represented by Sh Manl Mittra,
Advocate

Accused No. **113**/Mukesh Modi, in custody(not produced
before Court).

Accused No.**114** Rahul Virendra Modi in custody, produced
through VC by the concerned jail authority.

Accused No.**143**/Sudhir Punia in custody, produced through
VC from Bhondsi Jail

Accused No.**177**/Rajiv Kumar Rana in custody, produced
through VC by the concerned jail authority.

Accused No. **120**/Vibhav Lodha and No.**134**/Vivek Purohit,
who are on bail in this case but custody in other case (not
produced before the Court)

Accused No. **123**/Rohit Modi, No. **125**/Rajeshwar Singh,
No.**126**/Bharat Modi, No. **131**/Ishwar Singh Sindal, No.
142/Bharat Das Vaishnav, who are on bail in this case but
custody in other case, produced before the Court through VC
by concerned jail authority.

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Accused Surender Singh (No. 140), Vijay Shukla (No. 149), Raj Kumar Modi (No. 176), on interim bail.

Accused Joydeep Das Gupta (No.144), Lovekush Sharma (No.145), Avanish Kumar Tyagi (No.148) and Poonam Madan(No. 151) on bail, but granted personal exemption(s) till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Leena Harivvysi (No. 146) on bail, exempted till further orders vide order dated 03.05.2024

Accused Bharat Kumar Mardia (No. 154) on bail, exempted permanently, represented by Sh. Peeyush Jain, Advocate.

Accused Praveen Maheshwari (No.156) and Rajeev Maheshwari (No.157) on bail, but exempted from personal appearance till further order(s) vide order 31.01.2020, represented through Shri Piyush Jain, Advocate

Accused Rajeev Verma (No.167), Sushil Maloo (No.168) and Rajendra Singh Bhandari (No.169) on bail, but granted permanent exemption vide order(s) dated 04.09.2019.

Accused Paramvir Singh Sangwan(No.174) on bail, but granted personal exemption till further order vide order dated 19.02.2021, represented by Shri Dinesh Kumar, Advocate.

Accused Ichchhita Dungarwal (No.180) and Neha Kataria (No.181) permanently exempted till further orders vod 22.11.2019, represented by Sh Nitin Desodya, Advocate

Accused Paras Bolia (No.121) on bail (sought exemption **today**), represented by Sh Nitin Saini, Advocate

Accused Jainam Rathod (No.130) on bail in person (sought exemption for **today**) represented by Sh J.H.Khan, Advocate

Accused Prakash Chandra Purohit(No.133) on bail (sought exemption **today**),represented by Shri Vivek Tanwar, Advocate

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Accused Akshat Singh (No. **136**), on bail in person represented by Shri Prashant Yadav, Advocate

Accused Nazima Khan (No. 152) on bail(sought exemption **today**), represented by Shri Arun Sharma, Advocate

Accused Shiv Raj Sharma (No.160) (sought exemption **today**), represented by Shri Apoorv Yadav, Advocate

Accused Aditya Sarda (No. **141**) on bail in person, represented by Shri Karan Kumar Gogna, Advocate

Accused Megha Chauhan No.(No. 163) (sought exemption **today**), accused Indu Tak (No. 164) (sought exemption **today**), accused Shyam Bihari Gupta (No.165) (sought exemption **today**), accused Ravi Tak (No. 166) (sought exemption **today**) and accused Saurabh Tak (No. 172) on bail(sought exemption **today**), represented by Sh Neeraj Dev Gaur, Advocate

Accused Abhay K. Shah (No. **127**) on bail represented by Sh Karamveer, Advocate

Accused Manish Chaudhary(No.128), on bail represented by Sh Vivek Tanwar, Advocate

Accused Mahesh Kumar Tak (No. 187) (sought exemption **today**) on bail, represented by Sh Neeraj Dev Gaur, Advocate

Accused Naveen Choudhary(No. 162). Sudhir Mehta(No. 170) on bail ,represented by Sh Niraj Dev Gaur, Advocate

Accused Nitin Rathore(No. 116), Jinender Vyas(No. 118), Deepak Shrimali(No.129), Gurbir Singh Sandhu(No.138), Naveen Kumar(No.139), Vimal Sanwarmal Sharma(No.147), Shabir Khan (No. 153), Raj Kumar Bohra (No.171), Mahesh Dutt Sharma(No.178), on bail, in person.

Accused No.173 Peeyush Aggarwal on bail, represented by Sh Prashant Yadav, Advocate

Accused Vinay Kumpawat (No. **119**) already declared proclaimed person vod **27.07.2022** and accused Shinder Pal

Singh (No. **137**) already declared proclaimed person vod
03.05.2024

*Proceedings qua accused **Mahendra Kumar Tak (155)** and
Vijay Jindal (175) stood abated vide order dated
25.03.2022.*

*Proceedings qua accused No.122 **Virender Modi** stood abated
vide order dated 13.11.2024*

Accused No. **113**/Mukesh Modi, who was confined in custody in Jodhpur jail (Rajasthan) has not been produced through video conferencing by the concerned jail authority and instead, Naib Court of this Court has informed that concerned jail authority informed him that said accused has been released on interim bail till 01.03.2025. It is quite surprising that this Court has not passed any order on interim bail of said accused and moreover, Shri Hari Kishan, Senior Prosecutor for SFIO, has also informed the Court that Hon'ble High Court of Punjab and Haryana has also not passed any order qua interim bail of said accused in this case and instead, learned Senior Prosecutor has informed this Court that regular bail application of accused Mukesh Modi (113) is pending adjudication before Hon'ble High Court of Punjab and Haryana. In view of the same, detailed report be sought from Superintendent, Central Jail, Jodhpur (Rajasthan) in this regard, on or before 27.02.2025.

Accused No. **120**/Vibhav Lodha and accused No.**134**/Vivek Purohit, who are on bail in this case, but in custody in other case, not produced by concerned jail authority and instead, Naib Court attached to this Court informed that the concerned jail authority i.e Jodhpur jail (Rajasthan) has informed that both these accused are on interim bail till 24.01.2025.

Accused No. **114**/Rahul Virendra Modi, who is in custody in this case, produced through VC by the concerned jail authority. He be produced through VC before the Court on the adjourned date, if he remains in custody till then.

Accused No.143/Sudhir Punia and accused No.177/ Rajiv Kumar Rana in custody, produced through VC from Bhondsi Jail and they be produced through VC on the adjourned date.

Accused No. 123/Rohit Modi, No. 125/Rajeshwar Singh, No.126/Bharat Modi, No. 131/Ishwar Singh Sindal, No. 142/Bharat Das Vaishnav, who are on bail in this case, but custody in other case(s), produced before the Court through video conferencing and they be produced before the Court on the adjourned date through video conferencing, if they remain in custody till then.

Separate applications seeking exemption from personal appearance(s) filed on behalf of accused No.121 Parash Bolia, accused No.130 Jainam Rathod, accused No.133 Prakash Chander Purohit, accused No.152 Nazima Khan, accused No.160 Shiv Raj Sharma, accused No.163 Megha Chauhan, accused No.164 Indu Tak, accused No.165 Shyam Bihari Gupta, accused No.166 Ravi Tak, accused No.172 Saurabh Tak and accused No.187 Mahesh Tak. The applications are supported by respective affidavit(s). For the reasons mentioned in the applications, the same stand allowed for today only. All these accused are directed to come present in person on the adjourned date except in emergent situation(s).

Arguments on two separate applications, seeking permanent exemption from appearance(s) before the court, moved on behalf of accused no. 117/Priyanka Modi and accused No.133 Prakash Chandra Purohit, not advanced. Arguments on these applications shall be heard on the adjourned date.

Arguments on the application moved under Section 88 Cr.P.C/Section 91 BNSS, 2023 on behalf of accused No.124/Neha Ghemawat and accused No.132/Meenakshi Modi, not advanced. Learned counsel representing aforesaid two accused has informed the Court that initially both these accused approached Hon'ble High Court of Rajasthan and interim relief was granted to these accused vide order dated 20.12.2019, protecting them from any coercive action on the

part of the investigating agency, but Hon'ble High Court of Rajasthan declined to continue the said interim relief later on and aggrieved with the same, accused approached Hon'ble Supreme Court vide SLP (CRL)No.s.4732-4733/2022 and Hon'ble Supreme Court vide its order dated 20.05.2022, while disposing of the said petitions, requested the Hon'ble High Court to decide the writ petitions within a period of three months and till the decision of the writ petitions, the interim relief granted on 20.12.2019 was ordered to be continued and accordingly it has been submitted that petitions filed by these accused before Hon'ble High Court of Rajasthan are pending adjudication till date and further submitted that in view of the protection granted by the Hon'ble Supreme Court, there is no need on the part of these accused to bring on record any further interim order passed by Hon'ble High Court of Rajasthan in the pending writ petitions. Learned Senior Prosecutor for SFIO has not refuted the aforesaid submissions made on behalf of said accused, however it has been submitted that these accused were granted protection from any coercive action on the part of the investigating agency and there is no restraint order so far as court proceedings are concerned. In view of the same, both these accused are directed to bring on record order passed by Hon'ble High Court of Rajasthan if there is any restraint order regarding joining of court proceedings by these accused, otherwise they are directed to come present before the court on the adjourned date so that further proceedings as per law be carried out in this matter, failing which coercive steps have to be initiated so as to secure their presence.

On 13.01.2025, SFIO/complainant moved an application thereby making a prayer to declare accused No.135 Siddarth Chauhan as proclaimed person in the light of the fact that petition preferred by said accused before Hon'ble High Court of Punjab and Haryana High Court vide CRM-M-27904-2022 has been dismissed as withdrawn on 09.01.2025 and that now there is no restraint order to proceed further,

so far as said accused is concerned and that proclamation order was already passed by learned Predecessor vide order dated 25.03.2022 and statement of executing official has already been recorded on 07.05.2022 regarding publication of proclamation qua said accused. Today, an application has been moved on behalf of accused 135/Sidharth Chauhan, thereby seeking adjournment so as to enable him to avail appropriate remedy in accordance with law, mainly on the premise that petition bearing No.CRM-M-27904-2022, preferred on behalf of said accused, has been dismissed as withdrawn on 09.01.2025, with liberty to avail appropriate remedy in accordance with law and it has also been submitted that applicant-accused is undergoing treatment from Fortis Hospital, Gurugram. No doubt, proclamation order was passed by learned Predecessor and statement of executing official was also recorded regarding publication of proclamation, however, it is a matter of record that in the meanwhile said accused preferred petition before Hon'ble High Court and Hon'ble High Court granted interim relief in favour of the accused, by directing the Trial Court to adjourn the PO proceedings beyond the date fixed in the case listed before Hon'ble High Court and said order was continued till 09.01.2025 when said petition was ordered to be dismissed as withdrawn with aforesaid liberty. Thus, in view of the same, at least a period of 30 days is to be granted to the accused so as to ask him to come present before the court in terms of the publication effected on 30.04.2022(which was kept in abeyance in view of the direction of Hon'ble High Court) and therefore the matter stands adjourned to 27.02.2025 for appearance of said accused, failing which necessary consequences as per law shall ensue.

Learned counsel representing accused No.160/Shiv Raj Sharma submitted that the said accused is ready to appear before learned Duty Magistrate to get recorded his statement, as per law, so as to facilitate this Court to pass an appropriate order on the pending

application moved under Section 306/307 Cr.P.C. Learned Senior Prosecutor submitted that accused No.160/Shiv Raj Sharma has moved an application to become approver. If said accused has moved an application to become approver, then complainant/SFIO is at liberty, if it deems so appropriate, to get statement of said accused recorded before learned Duty Magistrate on any working day by forwarding such application as per law and as and when such statement is recorded/put up before this Court, then further order as per law shall be passed on the pending application.

Learned Senior Prosecutor is also directed to bring on record amended title, thereby reflecting the names of the persons who have been granted pardon, as prosecution witness, as per the order(s) passed by this Court.

Date of order: 18.01.2025

naveen

Jagdeep Singh
ASJ/Gurugram
UID No.HR0125